

SYNTHETIC LEGAL DOCUMENT

Transport Action Network Limited v Secretary of State for Transport

Case No: CA-2024-001234

Court of Appeal (Civil Division)

Filing Date: 2024-05-15

Appellant's Skeleton Argument

PARTY

Transport Action Network Limited (Appellant)

Counsel: James Thompson KC; Lucy Grant (instructed by Green & Co Solicitors LLP)

SUMMARY OF POSITION

The appellant argues that the Secretary of State unlawfully reduced the funding allocated for cycling and walking investment, violating statutory requirements under section 21 of the Infrastructure Act 2015.

FACTS RELIED ON

- The Secretary of State previously set a Cycling and Walking Investment Strategy which allocated £300m for cycling and walking initiatives.
- On 9 March 2023, the Secretary of State announced a cut to this funding, reducing it by £200m.
- The statutory variation process required under section 21 was not followed in making this funding decision.
- No statutory authority has been identified to justify the funding cut outside the prescribed CWIS framework.

CONTENTIONS

- The phrase 'to be made available' in section 21 is clear and requires funding to be allocated as specified.
- The Secretary of State's actions undermined the statutory purpose of providing certainty and stability in funding for cycling and walking.
- The judge's interpretation of 'to be made available' as merely 'intended to be made available' is incorrect.

LEGAL BASIS

- Infrastructure Act 2015, section 21
- Public Law principles regarding the legality of administrative decisions

RELIEF SOUGHT

- A declaration that the decision to cut funding was unlawful.
- An order for the Secretary of State to restore the funding to its original amount.
- Costs of the appeal.

AUTHORITIES CITED

- R (on the application of Friends of the Earth) v Secretary of State for Environment [2015] EWCA Civ 776
- R (on the application of B) v Secretary of State for Education [2019] EWCA Civ 590

TIMELINE

- 2022-07-09: Secretary of State sets second Cycling and Walking Investment Strategy (CWIS2) with £300m funding.
- 2023-03-09: Ministerial statement issued reducing funding from £300m to £100m.
- 2024-05-15: Appellant files appeal against the decision in the Court of Appeal.

KEY EXTRACTS

- "The resources specified 'must be made available' as part of the statutory framework."*
- "The Secretary of State's prior discretion to allocate funds is replaced by a mandatory statutory requirement."*